

HEADNOTE

- “1. Whether the preliminary cost estimate of the proceedings to be submitted following the interim hearing pursuant to R. 104(k) RoP constitutes confidential information within the meaning of Rule 262A RoP, access to which should be restricted for other parties to the proceedings, must be determined by weighing the mutual interests. In doing so, particular account must be taken of the right of access to information that is the subject matter of the proceedings and the associated right to be heard.*
- 2. An application pursuant to R. 262A RoP may implicitly contain an application for restriction of public access to information relevant to the proceedings pursuant to R. 262.2 RoP.*
- 3. In deciding on an application pursuant to R. 262.2 RoP, the general information interest of the public must be taken into account as a matter of priority. The requirements for granting confidentiality are accordingly lower than under R. 262A RoP.*
- 4. The public interest in becoming aware of attorney remuneration individually determined by fee agreements in patent disputes regularly takes a back seat to the interest of the party to the proceedings in keeping the negotiated fees confidential.”*

COURT
Central Division in Paris

PROCEEDINGS
Action for revocation

PATENT
EP 2 681 034 B1

Device and method for continuous
generative production

KEYWORDS

Confidential information

Procedural costs

Attorney fees

Public access

Cost estimate

Rule 104 Aim of the interim conference

SUMMARY

The Central Division in Paris ruled on an action for revocation. The patent at issue relates to a device and method for continuous generative production. According to the headnotes of the decision, cost estimates submitted for proceedings may require confidentiality protection. The court must balance the parties' interests against the right to access case-relevant information. This includes the right to be heard in the proceedings. An application for confidentiality may implicitly seek to restrict public access under different procedural rules. When deciding on public access restrictions, the court must prioritize general public interest. This means the threshold for granting confidentiality is lower in such cases. Furthermore, the public's interest in learning about attorney fees negotiated in patent disputes generally yields to a party's interest in keeping those fees confidential.